Kum.H.Supriya vs S Krishnappa on 9 February, 2026

Author: S.R.Krishna Kumar

Bench: S.R.Krishna Kumar

HC-KAR

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 9TH DAY OF FEBRUARY, 2026

BEFORE
THE HON'BLE MR. JUSTICE S.R.KRISHNA KUMAR
WRIT PETITION NO.37035 OF 2025 (GM-CPC)

BETWEEN:

KUM. H.SUPRIYA
D/O LATE SRI. MANJUNATH H S
AGED ABOUT 25 YEARS,
R/AT FLAT NO.21, 4TH CROSS,
BAPUJI LAYOUT, VIJAYANAGAR,
BENGALURU - 560 040.

...PETITIONER

(BY SRI. N.VAGEESHA., ADVOCATE)

AND:

1. S. KRISHNAPPA
S/O LATE SRI. SHIVANNA,
AGED ABOUT 63 YEARS,
R/AT D.NO.226,
8TH CROSS, WARD NO.15,
NIMISHAMBA NAGARA,
NEAR VIVEKANADA NAGAR CIRCLE,
MYSORE - 570 023
ALSO AT

NO.242, "MATHRUSHREE NILAYA",
TUVUREKERE VILLAGE,
TURUVEKERE TALUK,
KASABA HOBLI,

Digitally signed
by CHANDANA
BM
Location: High
Court of
Karnataka

TUMKUR DISTRICT - 572 227

2. SMT. SHOBHA K. N.
W/O LATE SRI MANJUNATHA H S
AGED ABOUT 55 YEARS

3. SRI. H. M. HARSHA
S/O LATE SRI MANJUNATHA H S

HC-KAR

AGE ABOUT 32 YEARS

BOTH ARE PRESENTLY
R/AT C/O SRI. H. S. NAGARAJU
NO.82, HINDUMARANAHALLI,
DABBEGHATTA HOBLI,
DABBEGHATTA POST,
TURUVEKERE TALUK,
TUMKUR DISTRICT - 572 227

...RESPONDENTS

(BY SRI. MANJEGOWDA D S., ADVOCATE FOR R1)

THIS WRIT PETITION IS FILED UNDER ARTICLE 227 OF THE CONSTITUTION OF INDIA RAYING TO a) BY QUASHING ORDER DATED 17/11/2025 PASSED ON 1.A.NO.VIII IN O.S.NO.07/2018, PENDING ON THE FILE OF SENIOR CIVIL JUDGE AND JMFC, HOLENARASIPURA, PRODUCED AT ANNEXURE-H; b) CONSEQUENTLY, THE PETITIONER PRAYS THAT THIS HON'BLE COURT BE PLEASED TO ALLOW THE APPLICATION I.A.NO.VIII FILED BY THE PETITIONER UNDER ORDER 6 RULE 17 READ WITH SECTION 151 CPC IN O.S.07/2018, PENDING ON THE FILE OF SENIOR CIVIL JUDGE AND JMFC, HOLENARASIPURA, PRODUCED AT ANNEXURE-F; c) PASS SUCH OTHER ORDER/S AS THIS HON'BLE COURT DEEMS FIT UNDER THE FACTS AND CIRCUMSTANCES OF THE CASE IN THE INTEREST OF JUSTICE AND EQUITY.

THIS PETITION, COMING ON FOR ORDERS THIS DAY, ORDER WAS MADE THEREIN AS UNDER:

CORAM: HON'BLE MR. JUSTICE S.R.KRISHNA KUMAR

ORAL ORDER

This petition by the defendant No.3 in O.S.No.7/2018 is directed against the impugned order dated 17.11.2025 passed by the Senior Civil Judge and JMFC, Holenarasipura, whereby the application I.A.No.VIII filed by the petitioner- defendant No.3 NC: 2026:KHC:7501 HC-KAR seeking permission to amend the written statement by incorporating additional paragraph No.17a after paragraph 17 was rejected by the trial Court.

2. Heard learned counsel for the petitioner and learned counsel for the respondent No.1 and perused the material on record. For the order proposed, service of notice to respondent Nos.2 and 3 are dispensed with.

3. A perusal of the material on record will indicate that the respondent No.1-plaintiff instituted the aforesaid suit against the petitioner - defendant No.1 and defendant Nos.2 and 3 for specific performance of an alleged sale agreement dated 14.09.2018 relating to suit schedule immovable property and for other reliefs. The defendants are contesting the said suit. The respondent No.1 having adduced evidence, and at the stage of cross-examination of PW1, the petitioner filed the instant application seeking amendment of the written statement by incorporating certain subsequent events in relation to suit in O.S.No.59/2021 pending on the file of the Senior Civil Judge, Holenarasipura. The said application having been opposed by the plaintiff, the trial Court proceeded to pass the NC: 2026:KHC:7501 HC-KAR impugned order rejecting the application, aggrieved by which, the petitioner is before this Court by way of the present petition.

4. A perusal of the impugned order will indicate that the trial Court has rejected the application on the ground that the petitioner had not exercised due diligence in not seeking amendment earlier prior to filing the instant application. In this context, it is pertinent to note that the proposed amendment relates to certain subsequent events that are alleged to have occurred after institution of the suit including institution of O.S.No.59/2021, which obviously could not have been pleaded by the petitioner- defendant No.3 at the time of filing the written statement in the suit of the year 2018.

5. Under these circumstances, in the light of the principles enunciated by the Hon'ble Apex Court in the cases of LIC v. Sanjeev Builders (P) Ltd. - (2022) 16 SCC 1, Dinesh Goyal @ pappu v. Suman Agarwal (bindal) & ors. - 2024 INSC 726 and a co-ordinate Bench of this Court at Dharwad Bench in the case of Shri Mohammadrafi and Anr., Vs. Bandenawaz and Ors

- W.P.108512/2025 dated 16.12.2025, I am of the considered opinion that the impugned order passed by the trial Court refusing NC: 2026:KHC:7501 HC-KAR amendment has occasioned failure of justice warranting interference by this Court in the present petition. At any rate, since the plaintiff would have an opportunity to file rejoinder/reply to the amended written statement, no prejudice can be said to have been caused to the plaintiff if the proposed amendment was allowed and failure on the part of the trial Court to appreciate this has resulted in erroneous conclusion.

6. In the result, I pass the following:

ORDER

i) The petition is hereby allowed.

ii) The impugned order dated 17.11.2025 on I.A.No.VIII in O.S.No.7/2018 on the file of Senior Civil Judge and JMFC, Holenarasipura, is hereby set aside.

iii) I.A.No.VIII under Order VI Rule 17 of CPC is hereby allowed.

iv) Liberty is reserved in favour of the respondent No.1-

plaintiff to file rejoinder/reply to the amended written statement.

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v) The trial Court is directed to dispose of the suit within a period of one year from the date of receipt of a copy of this order.

vi) All rival contentions on all aspects of the matter are kept open and no opinion is expressed on the same.

Sd/-

(S.R.KRISHNA KUMAR) JUDGE MDS List No.: 1 Sl No.: 15